

The matter will be on calendar on **Monday, June 8, 2026 at 9:00 a.m. in Department 63** for status of class notice. The parties are ordered to submit to the Court no later than June 1, 2026, a joint statement (or separate status statements if the parties cannot agree) that outlines a proposed class notice.

PHILLIPS, ET AL. VS. PRIME HEALTHCARE SERVICES, INC., ET AL.

CASE NUMBER: 25CV-0208680

Tentative Ruling on Demurrer: Defendant County of Shasta demurs to the First Amended Complaint filed by Plaintiffs Fredrick James Phillips and Heather Lynn Phillips. The matter was on for hearing on March 23, 2026 and the Court noted there was no Proof of Service on file for the Opposition filed by Plaintiffs and that Defendant had not filed a Reply. County Counsel informed the Court that the County had not received the Opposition. The Court continued the hearing to today. On March 23, 2026, Plaintiffs filed a Proof of Service indicating that on February 24, 2026 the Opposition was served on “County of Shasta, Clerk of the Board C/O County Counsel” at “1450 Court Street, Suite 308B Redding, CA 96001.” This is the address for the Clerk of the Board. County Counsel is Suite 332. In all cases where a party has an attorney in the action or proceeding, the service of papers must be upon the attorney instead of the party. CCP § 1015. Therefore, service on the Clerk of the Board instead of County Counsel was invalid and it appears that Defendant County of Shasta has still not been properly served with Plaintiffs’ Opposition.

The Court has also received a “notice of lodging proposed order re: leave to file second amended complaint” from Plaintiff. Absent a stipulation or noticed motion, the Court cannot unilaterally grant the relief requested by Plaintiff.

The matter is continued to **Monday, May 11, 2026 at 8:30 a.m. in Department 63** for hearing on the Demurrer. Plaintiffs are **ORDERED** to properly serve the Opposition. The Court notes that a Substitution of Attorney was filed on April 9, 2026 and the Defendant County of Shasta is now represented by Best Best & Krieger, LLP. The address listed is 300 South Grand Avenue, 25th Floor, Los Angeles, CA 90071. Plaintiffs are reminded of the timelines set forth in CCP § 1005(b). If the Opposition has not been properly served with a valid Proof of Service on file, the Court intends to strike the Opposition at the next hearing for lack of valid notice to Defendant County of Shasta. **No appearance is necessary on today’s calendar.**

ROBERT "BEAR" MASTERSON, INDIVIDUALLY, AND DERIVATIVELY ON BEHALF OF SLO GROUP LLC, ET AL. VS. SARAF, ET AL.

CASE NUMBER: 26CV-0210047

Tentative Ruling on Petition to Compel Arbitration and Stay Proceedings: Defendants Nishant Reddy and Simmon Saraf petition for an order compelling arbitration of Plaintiff, Robert “Bear” Masterson’s, claims and staying the proceedings pending completion of arbitration. Plaintiff opposes the motion. The Court notes that service of the petition and supporting documents was purportedly served by “Court E-Service.” No such service method exists with this Court. As the Plaintiff has filed an opposition, it appears this method of service may have been marked in error.

Merits: The Federal Arbitration Act (“FAA”) like California law, codifies the strong public policy in favor of enforcing arbitration agreements. 9 U.S.C. § 1 et seq. The FAA applies to any written arbitration agreement in a contract evidencing a transaction involving interstate commerce. *Allied-Bruce Terminix Companies, Inc. v. Dobson* (1995) 513 U.S. 25, 277. The court’s role under the FAA is limited to determining (1) whether a valid agreement to arbitrate exists and, if it does, (2) whether the agreement encompasses the dispute at issue. *See* 9 U.S.C. § 4; *Simula, Inc. v. Autoliv, Inc.*, 175 F.3d 716, 719–20 (9th Cir.1999); *see also Republic of Nicaragua v. Standard Fruit Co.*, 937 F.2d 469, 477–78 (9th Cir.1991). If the response is affirmative on both counts, then the Act requires the court to enforce the arbitration agreement in accordance with its terms. *Chiron Corp. v. Ortho Diagnostic Sys., Inc.* (2000) 207 F.3d 1126, 1130. Plaintiff has provided copies of the Operating Agreements